

Smt.Vandana vs Balaveera Singh on 30 March, 2023

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RPFC No. 100073 of 2016

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 30TH DAY OF MARCH, 2023

BEFORE

THE HON'BLE MRS. JUSTICE K.S.HEMALEKHA

REV.PET FAMILY COURT NO.100073 OF 2016

BETWEEN:

SMT.VANDANA
W/O. BALAVEERA SINGH KAPOOR,
AGED ABOUT 32 YEARS,
OCC: STUDENT,
R/O: G.P.W. CAMPUS, P.B. ROAD,
VIDYANAGAR, HUBBALLI - 580 031.

...PETITIONER

(BY SRI V.M. SHEELVANT, SRI S.H. MITTALKOD,
SRI VINAY S. KOUJALAGI, SRI M.L. VANTI AND
SMT. VIJAYALAXMI M.N., ADVOCATES)

AND:

SRI BALAVEERA SINGH
S/O. KIRPAL SINGH KAPOOR,
AGED ABOUT 40 YEARS,
OCC: BANK EMPLOYEE,
R/O: PLOT NO.6, SHANTAPURAM LAYOUT,
NEAR J.K. SCHOOL, HUBBALLI.

VIJAYALAXMI
M BHAT

Digitally signed by
VIJAYALAXMI M BHAT

Location: HIGH COURT
OF KARNATAKA
DHARWAD

...RESPONDENT

(BY SRI PRASHANTH V. HOSAMANI AND SRI VARUN S., ADVOCATES)

THIS RPFC IS FILED UNDER SECTION 19(4) OF THE FAMILY

COURT ACT 1984 R/W. SECTION 115 OF CPC., AGAINST THE JUDGMENT AND ORDER DATED 13.04.2016, IN CRL.MISC. NO.3/2014, ON THE FILE OF THE PRINCIPAL JUDGE, FAMILY COURT, HUBBALLI, PARTLY ALLOWING THE PETITION FILED UNDER SECTION 125 OF CR.P.C. AND SECTION 7 OF FAMILY COURT ACT.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

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RPFC No. 100073 of 2016

JUDGMENT

The present petition by the wife assailing the order dated 13.04.2016 in Crl.Misc.No.03/2014, whereby the respondent-husband was directed to pay monthly maintenance of Rs.10,000/- to the petitioner-wife from the date of petition by deducting the interim maintenance paid and also directed the respondent-husband to pay litigation expenses of Rs.15,000/-.

2. According to the petitioner-wife, the maintenance ordered by the Family Court is inadequate and seeks for enhancement.

3. The claim was made under Section 125 Cr.P.C by the petitioner-wife. The pleadings reveal that the petitioner and respondent are the husband and wife, their marriage being solemnized on 24.06.2012. The petitioner- wife owing to the physical and mental harassment by the respondent-husband is staying separate along with her parents. The respondent-husband has willfully neglected to maintain her and provide basic necessities, that the husband is working as a manager in Axis Bank at Hubballi, drawing salary of more than Rs.70,000/- to 75,000/- per month.

4. The proceedings filed by the wife was contested by the husband, inter alia, contending that the wife is not entitled for maintenance as she has left the matrimonial home without any justifiable reasons and the husband is having salary just enough to maintain himself and his aged parents and the maintenance sought by the wife is exorbitant.

5. The concerned Family Court taking into consideration the material on record, directed the respondent-husband to pay the maintenance of Rs.10,000/- per month vide order dated 13.04.2016. Aggrieved by which, petitioner-wife is before this Court.

6. Heard learned counsel Sri S H Mittalkod appearing for the petitioner-wife and learned senior counsel Sri Sreevatsa for Sri Prashant V.Hosmani learned counsel appearing for the respondent-husband and perused the material on record.

7. Learned counsel for the petitioner vehemently contended that the award of maintenance by the Family Court at Rs.10,000/- per month is on the meager side taking into consideration that the salary certificate at Ex.P.15, which clearly establishes that the respondent- husband is earning

around Rs.70,000/- per month and the Family Court has erroneously held that the respondent was only getting the monthly salary of Rs.47,406/- per month, whereas the material on record would reveal that he is substantially earning and hence, petitioner is entitled for at least Rs.20,000/- per month towards basic necessities and the order of the Family Court awarding Rs.10,000/- per month needs to be set aside.

8. Per contra, learned senior counsel appearing for the respondent-husband, in addition to various other contentions urged in the statement of objections filed by the respondent, would contend that the present petition assailing the impugned order of the Family Court is pending consideration since 2016 down to date and during the interregnum, petitioner-wife has filed Criminal Miscellaneous No.21/2021 under Section 127 Cr.P.C seeking alteration of maintenance as awarded in Crl.Misc.03/2014 stating that the petitioner is entitled for 1/3rd of the respondent's salary from the date of petition with cost and the Family Court in the well considered order has dismissed Crl.Misc.No.21/2021 and after dismissal of Crl. Misc. No.21/2021, the present petition has sought to revive the present petition.

9. Learned senior counsel would also contend and take this Court to the judgment passed in Crl.Misc.No.21/2021 on 07.12.2022 and would contend that the same has attained finality in the absence of any challenge of the order in Crl.Misc.No.21/2021 and the present petition is nothing but an abuse of Court process.

10. Learned counsel for the respondent-husband would also contend that in Crl.Misc.No.205/2020 filed by the petitioner-wife for execution of the maintenance amount, a memo along with the details of payment made by the respondent-husband has been filed. The claim of the petitioner-wife was Rs.5,10,000/- and respondent- husband had paid an amount of Rs.5,64,500/-, which is excess than the amount claimed and said memo has been placed on record in Crl. Misc. No.205/2020. Learned counsel has also brought to the notice of this Court that M.C.No.293/2017 filed before the Family Court, Hubli, for divorce and the said divorce petition filed by the respondent-husband has been allowed under Section 13(1)(ia) (ib) of the Hindu Marriage Act and the marriage of the petitioner and respondent, solemnized on 24.06.2012 has been dissolved by a decree of divorce.

11. Learned counsel also takes this Court to the cause-title in the petition, where it is mentioned that the wife is a student, whereas, Annexures- "F" and "G" produced along with the statement of objection by the respondent to show that the petitioner-wife is the director of Acute Snab Geospatial and Engineering Private Limited and Proprietrix of Sharaang Designs & Engineering Pvt. Ltd and is a regular taxpayer and would vehemently contend that the material on record make it evident that the petitioner-wife is not in need of any amount for maintenance from the hands of the husband and the petition is filed only to harass the husband and sought to dismiss the petition with exemplary costs.

12. Heard the learned counsel for the parties and perused the material on record.

13. It is undisputed that the petitioner and respondent are husband and wife and it is also undisputed that the petitioner and respondent are living separately since 2014 and several

litigations have been initiated by the either of the parties. Crl.Misc.No.03/2014 is filed by the petitioner-wife seeking maintenance of Rs.20,000/- per month and Rs.75,000/- towards educational expenses per annum and litigation expenses of Rs.25,000/- and Court cost. The concerned Court placing reliance upon the material on record and considering the evidence of P.W.1 and R.W.1 and taking note of Ex.P.15 has come to the conclusion that the petitioner-wife is entitled for maintenance of Rs.10,000/- per month from the respondent-husband.

14. It is also relevant to note that during the pendency of this revision petition from 2016 in the interregnum the petitioner-wife has filed Crl.Misc.No.21/2021 under Section 127 Cr.P.C seeking alteration/enhancement of maintenance on the following grounds:

"a) The Hon'ble Court has already granted the maintenance to her Rupees 10,000/- in Criminal Petition No. 3/2014 as against the Respondent.

Hence, this petition filed for enhancement of maintenance for her for the change of circumstances.

b) She is facing herself personal and financial problems. She is not able to maintain herself. Now, she is living with her mother and brother or at other relatives house. She has become burden to them for her every basic needs to depend on her mother and brother, so, she is not capable to maintain herself.

c) Cri.Misc. No.3/2014 was filed and the Hon'ble Court has passed the award amount, which is not sufficient. Because, now a day, the rate of food grains, clothes, etc. is very high/costly in view of things. Therefore, she is facing severe problems, The earlier maintenance award amount is not sufficient to her.

d) The Respondent has filed M.C.No.293/20109 and he is already admitted that, he is an Officer in Axis Bank drawing salary of more than Rupees 1 Lakh per moth, in addition to many other allowances, bonus, etc., Hence, now he might probably be drawing a salary of Rupees 1,70,000/- per month. Inspite of such huge salary, the Respondent is paying very meager amount to her.

e) Therefore, she prays this Hon'ble Court that, the Respondent is quite capable person. Therefore, the Hon'ble Court be pleased to grant the amount of monthly maintenance of 1/3rd of his salary and she is also entitled to 1/3rd of Respondent's salary amount. The Respondent has to pay the amount to her. Therefore, the Hon'ble Court considering the change of circumstances to award more amount to

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her for her maintenance. Hence, prayed to allow this petition"

15. The respondent-husband filed objection to the petition.

16. The Family Court, Hubli, on consideration of the material on record and the evidence of the parties has held that the petitioner-wife failed to prove:

- i) that she is entitled for enhancement of maintenance from the respondent-husband under changed circumstances
- ii) that she is facing personal and financial problem and she is unable to maintain herself and earlier maintenance of Rs.10,000/- per month awarded in Crl.Misc.No.03/2014 is not sufficient to lead her life and she requires more amount of livelihood and maintenance.

Accordingly, dismissed the petition filed by the petitioner-wife under Section 127 Cr.P.C. The said order passed in Crl.Misc.No.21/2021 dated 07.12.2021 has

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attained finality and after dismissal of Crl.Misc.21/2021, the petitioner is now trying to contend that the award of maintenance by the Family Court is inadequate.

17. It is also relevant to state that, M.C.No.293/2017 filed by the respondent-husband under Section 13(1)(ia)(ib) of Hindu Marriage Act, seeking for divorce on the ground of cruelty and desertion has been culminated in divorce and marriage of the petitioner and respondent has been dissolved and while dissolving the marriage, it was been held that since the petitioner-wife is getting maintenance the question of granting permanent alimony to the petitioner-wife would not arise. The said order dissolving the marriage has not been appealed against.

18. In the backdrop of this, the petitioner unable to state how the family Court went wrong and in view of subsequent events during the pendency of the petition, the present petition is clear abuse of the process of law.

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19. No doubt it is well settled that the provision of Section 125 Cr.P.C. is to prevent vagrancy and destitution, however, in the present case, the material on records speak otherwise, which is evident from Annexures-F and G produced along with the statement of objections filed by the respondent-husband, which reveals as under:

- a. Annexure-F: The Managing director of Acutesnap Geospatial and Engineering Private Ltd.
- b. Annexure-G: The Proprietrix of Sharaang Design & Engineering and not a student as stated in the petition.

20. Grant of maintenance to the wife has been perceived as a measure of social justice and it is specially enacted to protect women and children. This being the position of law, it is obligation of the husband to maintain his wife. However, the enactment of Section 125 Cr.P.C should not be

misused by the wife as is evident in the present case.

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21. The amount of maintenance fixed for the wife should be such as she can live in a reasonable, comfort considering her status and the mode of life as she was used to when she live with her husband and also that she does not feel handicap in the prosecution of her case. At the same time, the amount so fixed cannot be excessive or extortionate as held by the Hon'ble Apex Court in the case of Jasbir Kaur Sehgal Vs. District Judge, Dehradun reported in (1997) 7 SCC 7.

22. The concerned Family Court has awarded maintenance of Rs.10,000/- per month taking into consideration the totality of circumstances and filing of the subsequent petition, which has reached finality, this Court is of the considered view that the order of the Family Court is just and proper and does not call for any interference and accordingly, this Court pass the following:

ORDER a. Petition filed by the petitioner-wife is hereby dismissed as devoid of merits.

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b. The impugned order dated 13.04.2016 in Crl.Misc.No.03/2014 on the file of the Principal Judge, Family Court, Hubballi, stands confirmed.

(sd/-) JUDGE AC